

#	Case Name	Tentative
1.	WEI VS. SMART & FINAL, LLC 2024-01450331	1. MOTION TO COMPEL ANSWERS TO FORM INTERROGATORIES 2. MOTION TO COMPEL ANSWERS TO SPECIAL INTERROGATORIES 3. MOTION TO COMPEL PRODUCTION 4. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS Defendant Smart & Final, LLC's Motions to Compel Answers to Requests for Production of Documents, Form Interrogatories, Special Interrogatories, and to Deem Admitted Requests for Admission (ROAs 39, 43, 47, and 51) are GRANTED. Per the declaration of defense counsel, Defendant served the subject discovery on 8/21/25, but as of 12/4/25 Defendant had not received any response from Plaintiff. Plaintiff shall serve verified responses, without objections, to Defendant's Requests for Production of Documents, Form Interrogatories, and Special Interrogatories (Set One) within 20 days of service of notice of this order. (Code Civ. Proc. §§ 2031.300, 2030.290.) Plaintiff is deemed to have waived objections and admitted Defendant's Requests for Admission (Set One). (Code Civ. Proc. § 2033.280.) Defendant's request for sanctions is granted in the amount of \$470 per motion, reflecting two hours of counsel's time plus the \$60 filing fee, for a total of \$1,880.00 for the four motions, payable within 30 days of service of notice of this order.
2.	TC BROTHERS ENTERPRISES, INC. VS. BOWLERO CORPORATION 2023-01313029	MOTION TO COMPEL ANSWERS TO FORM INTERROGATORIES Defendant AMF Bowlero Centers, Inc.'s Motion to Compel Responses to Form Interrogatories, set one, is DENIED as moot. Plaintiff served responses to Defendant's Form Interrogatories, set one, on December 8, 2025. (Reed Decl., ¶ 9.) Thus, the Motion is moot. Defendant's request for sanctions is DENIED. Plaintiff acted with substantial justification in submitting responses in a timely manner after counsel had a personal emergency.

3.	METOYER VS. EXCEL ACADEMY CHARTER SCHOOLS 2024-01430946	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) The Motion to Compel Plaintiff’s Deposition Testimony by Defendant Excel Academy Charter Schools is GRANTED. Defendant moves to compel Plaintiff to respond to a deposition question in which she was asked to identify her current employer. (Defendant argues, “Dr. Metoyer attempted to prevent disclosure of this information by agreeing not to pursue lost wages as damages, but then placed that information back in controversy by tying her alleged emotional distress to disclosing her employment history when applying for jobs. Thus, the lion’s share of her alleged emotional distress damages are directly tied to her current employer.” (Motion, 4:5-9.) Plaintiff opposes the motion on the grounds that (1) the parties entered a stipulation on the record that Plaintiff would not seek economic damages in exchange for Defendant not questioning her about subsequent employment, (2) the identify of Plaintiff’s current employer is not relevant, and (3) Plaintiff’s right to privacy protects this information. In reply, Defendant argues that while the parties agreed not to examine Plaintiff’s current employment related to economic damages, Plaintiff later raised the issue of emotional distress involving her current employment in relation to her claims against Defendant, her prior employer. Defendant also asserts that it should be able to determine whether Plaintiff’s claim that she did not lie about her past termination when seeking new employment is credible. At her deposition, Plaintiff testified she was still experiencing emotional distress, including when “something comes up about my work history or questions” such as “[i]n seeking employment” with her current employer. (Plaintiff Depo., 192:3-198:4.) The Defendant need only show that the information sought is reasonably calculated to lead to discovery of admissible evidence. (Code Civ. Proc. § 2017.010.) And while Plaintiff has privacy rights related to her employment information, she has placed issues related to her current employment at issue by stating that she has suffered emotional distress in relation to applying for new positions after Defendant’s termination. (Plaintiff Depo., 191:18-198:7; see <i>John B. v. Superior Court</i> (2006) 38 Cal.4th 1177, 1199 [“privacy interests may have to give way to (the) opponent’s right to a fair trial”]; <i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 842 [“a party who chooses to allege that he has mental and emotional difficulties can hardly deny his mental state is in controversy”].) At this time, the Court need not decide whether further discovery into Plaintiff’s current employment will be permitted. The parties
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